ORDINANCE NO. 465

AN ORDINANCE REQUIRING PREMISES TO BE KEPT FREE FROM WEEDS, RANK GRASS, GARBAGE, RUBBISH AND OTHER UNSIGHTLY AND UNSANITARY ARTICLES: REQUIRING PROPERTY OWNERS OR TENANTS TO ELIMINATE, FILL UP OR REMOVE STAGNANT POOLS OF WATER OR ANY OTHER UNSANITARY THING, PLACE OR CONDITION WHICH MIGHT BECOME A BREEDING PLACE FOR MOSQUITOES, FLIES AND GERMS HARMFUL TO THE HEALTH OF THE COMMUNITY: PRESCRIBING A PROCEDURE TO BE FOLLOWED IN SUCH CASES: DECLARING AN EMERGENCY, AND FOR OTHER PURPOSES.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

DEFINITIONS

Weeds, Rank Grass: Weeds and rank grass, for the purpose of this ordinance, shall be interpreted to mean, that vegetation having a height of 8" or more, and that constitutes 50% or more of the area of the alleged violation. This definition exempts any area that falls within the agricultural zone of the zoning ordinance of the City of Rector, AR.

Unsightly and Unsanitary Articles: Unsightly and unsanitary articles for the purpose of this ordinance, shall be interpreted to mean anything that injuriously affects the safety, health or morals of the public, or works some substantial annoyance, inconvenience or injury to the public. Examples of such articles are abandoned vehicles and parts, rusted cans, barrels, scrap metal, scrap brick, obsolete signs, abandoned, unusable appliances, fans, old tires, pipes, junk metal, dilapidated buildings, unusable lumber, abandoned unusable machinery, and rotted wood. This list is not intended to be exclusive or comprehensive, is for example only and not limited thereto.

Property Owners: Property owners for purposes of this ordinance, shall be interpreted to mean owners, tenants, occupiers, lessees, individuals, corporations, partnerships, firms, voluntary associations or any other entity, group, by deed or contract to make a deed, or land contract who are in physical or constructive possession of real property. This definition does not absolve the fee simple owner, life tenant or merchantable title owner of the property of responsibility to comply and this ordinance shall make such owner equally responsible for the elimination of the violable conditions contained in this ordinance.

SECTION 1. All property owners and tenants within the City of Rector, Arkansas, are hereby required to cut weeds, grass, remove garbage, rubbish and other unsanitary and unsightly articles and things from their property, and to eliminate, fill up, or remove stagnant pools of water or any other unsanitary things, place or condition which might become a breeding place for mosquitoes, flies and germs harmful to the health of the community.

SECTION 2. If the tenant, owner or owners of any lot or other real property within the City of Rector, after the giving of twenty (20) days' notice in writing by (official authorized to do so), shall refuse or neglect to perform the duties in connection with his or their property as specified in Section 1 hereof, the Chief of Police or Code Enforcement Officer is hereby authorized to enter upon the property and have said weeds, rank grass or other vegetation cut and removed, or eliminate any unsanitary and unsightly condition, and the cost thereof shall be charged against said premises and shall constitute a lien thereon (one written notice shall be deemed efficient notice per calendar year).

SECTION 3. In case the tenant or owner of any lot or other real property is unknown or his whereabouts is not known or is a nonresident of this State, then a copy of the written notice hereinabove referred to shall be posted upon the premises and before any action to enforce such lien shall be had, the City Clerk or other appropriate official shall make an affidavit setting out the facts as to unknown address or whereabouts of non residents and thereupon service of publication as now provided for by law against nonresident defendant may be had and an attorney ad litem shall be appointed to notify the defendant by registered letter addressed to his last known place of residence if same can be found.

SECTION 4. The lien herein provided for may be enforced and collected in either one of the following manners:

(A) The lien may be enforced at any time within eighteen (18) months after work has been done, by an action in the Chancery Court; or

(B) The amount of the lien herein provided may be determined at a hearing before the City Council held after thirty (30) days' written notice by certified mail to the owner or owners of the property, if the name and whereabouts of the owner or owners be known and if the name of the owner or owners cannot be determined, then after publication of notice of such hearing in a newspaper having a bona fide circulation in Clay County for one (1) insertion per week for four (4) consecutive weeks; and the amount so determined at said hearing, plus ten percentum (10%) penalty for collection shall be certified by the City Council to the Clay County Tax Collector, and by him placed on the tax books as

delinquent taxes and collected accordingly, and the amount, less three percentum (3%) thereof, when so collected shall be paid to the City of Rector.

SECTION 5. A fine of Fifty Dollars ($50.00) is hereby imposed against the owner or owners of said lot or real property upon such weeds, rank grass or other vegetation have not been cut or removed or upon which any unsanitary and unsightly conditions have not been eliminated thirty (30) days after written notice to the owner of said property and for each day thereafter that said items have not been removed or eliminated shall constitute a separate and distinct offense punishable by a fine or Fifty Dollars ($50.00) for each said separate and distinct offense.

SECTION 6. Ordinances 350, 367 and 380 are hereby repealed. And all other ordinance or parts of ordinances in conflict herewith are hereby repealed.

SECTION 7. It has been determined that this ordinance is necessary and is vital to the health, welfare and safety of the public, therefore, an emergency is hereby declared to exist and this ordinance shall be in full force and effect from and after its passage and approval.

Ronald E. Kemp

Ronald Kemp, Mayor

ATTEST:

Kenneth R Bevard

City Clerk-Recorder

DATE: 7-23-99